

same construction project. It identifies no independent duty beyond the parties' oral agreement, no distinct breach, and no separate harm.

Plaintiff argues the statutory requirements of section 7159 for home improvement contracts are "implied covenants," and that Defendants' failure to comply with those requirements is therefore a breach of the implied covenant of good faith and fair dealing. That argument, at most, alleges a breach of contract on implied terms, not a breach of the implied covenant. The implied covenant governs how parties perform the contract they made; it does not add new terms or turn statutory requirements into contract obligations. (*Guz, supra*, 24 Cal.4th at 349.) Because the second cause of action alleges the same breaches and seeks the same relief as the first, it is duplicative and subject to demurrer on that ground.

Independently, because the covenant is implied in the alleged oral agreement, the two-year period under CCP § 339(1) applies, and the claim is time-barred for the same reasons as the first cause of action.

Leave to Amend

Although there is substantial doubt that a CSLB disciplinary proceeding can support equitable tolling of a civil contract claim as a matter of law, and although the current pleading fails on each of the three *McDonald* elements, California's liberal policy favors granting leave to amend where a plaintiff has not yet had an opportunity to plead specific tolling facts. (*Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.) Plaintiff has not previously been on notice of the specific pleading deficiencies identified above.

The demurrer is sustained as to the first and second causes of action, with ten (10) days leave to amend from the date of service of the notice of ruling or service of the signed order, whichever is first.

3.

CASE #	CASE NAME	HEARING NAME
CVRI2600397	PEREZ vs BANDERAS GENERAL CONTRACTORS	MOTION TO STRIKE 1ST AMENDED COMPLAINT

Tentative Ruling:

Defendants filed a motion to strike paragraph 53 of the FAC on the grounds that it is irrelevant, false, and improper. Plaintiff represents in his opposition that, prior to the filing of the motion, he agreed through counsel to stipulate to strike paragraph 53 of the FAC, and that "[t]hat paragraph and the prayer for punitive damages relating to that allegation is hereby withdrawn." (Pl.'s Opp. 5:12–14.)

The motion is denied as moot, in light of the court's ruling on the demurrer.